



Title VII: The Basics

Overview

Title VII of the Civil Rights Act of 1964 protects employees and applicants from discrimination based on race, color, sex, national origin, religion or national origin. Reprisal for engaging in EEO activity or opposing discriminatory practices is also prohibited by Title VII, although it is not referenced in [42 USC Section 2000e-16](#), the section that applies specifically to federal employees.

Some courts have noted the lack of an antiretaliation provision for federal employees in Title VII, but most Circuit Courts of Appeal have recognized federal sector retaliation claims. See, for example, *Komis v. Secretary of the United States Department of Labor*, [119 LRP 9439](#), 918 F.3d 289 (3d Cir. 2019). The Equal Employment Opportunity Commission has consistently held that federal employees are protected from reprisal for EEO activity under Title VII.

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

In general

- Title VII provides that "[a]ll personnel actions" affecting federal employees "shall be made free from any discrimination based on race, color, religion, sex, or national origin." [42 USC Section 2000e-16\(a\)](#).
- **Hadley:** The Title VII bases of discrimination are status-related; that is, no conduct or action by an individual is required to be a member of a protected category. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Bases of Discrimination Under Title VII](#).
- **Hadley:** We are born with the attributes of race, color, sex, and national origin. Religion may seem out of place, since a conscious decision can be made about one's religion. However, religion has always held a preferred place in our history as evidenced by the First Amendment. Moreover, the proscription against religious discrimination protects the mere status of one's religious heritage as well as the active practice of or adherence to religious beliefs. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Bases of Discrimination Under Title VII](#).
- **Hadley:** Religion does differ from the other protected categories under Title VII in that an agency has an affirmative obligation to accommodate the religious practices of an employee if the accommodation would not place an undue hardship on the agency. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Bases of Discrimination Under Title VII](#).
- **Hadley:** General mistreatment or even favoritism, if not based on a protected status, is not actionable under Title VII. See, *Jaleesa P. v. Department of Defense*, [121 LRP 37312](#), EEOC No. 2020003940 (EEOC OFO 2021). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Bases of Discrimination Under Title VII](#).

Federal court rulings on the parameters of Title VII

- The 1972 amendments to the Civil Rights Act of 1964 which extended the protections of Title VII to employees of the federal government constitute the exclusive individual remedy available to such employees. Congress intended to establish a comprehensive preemptive administrative and judicial mechanism and scheme for the redress of federal employees' complaints. *Brown v. General Services Administration*, [76 FEOR 9005](#), 425 U.S. 820 (1976).
- The District Court granted the agency's motion to dismiss the plaintiff's constitutional, statutory, contract, and estoppel claims. *Citing Belhomme v. Widnall*, [98 FEOR 7008](#), 127 F.3d 1214 (10th Cir. 1997), which cites *Brown v. General Services Administration*, [76 FEOR 9005](#), 425 U.S. 820 (1976), it noted that "[A] federal employee's only avenue for judicial relief from

federal employment discrimination is through Title VII." *Fisher v. Department of Veterans Affairs*, No. CIV-08-464-M (W.D. Okla. 2009).

- "Congress has not authorized, either expressly or impliedly, a cause of action against the EEOC for the EEOC's alleged negligence or other malfeasance in processing an employment discrimination charge." *Smith v. EEOC*, [97 FEOR 70017](#), 199 F.3d 33 (D.C. Cir. 1997). Rather, Title VII provides the exclusive remedy for 'any improper handling of a discrimination charge by the EEOC.' Id." *Connor-Stokes v. EEOC, et al.*, [110 LRP 25231](#), No. 09-0786 (JDB) (D.D.C. 2010).
- "[I]f a federal employee believes that the EEOC improperly handled a discrimination claim, the employee may obtain de novo review of the EEOC's final determination of that claim under Title VII in federal court." *Connor-Stokes v. EEOC, et al.*, [110 LRP 25231](#), No. 09-0786 (JDB) (D.D.C. 2010).
- "Title VII provides a former employee with a remedy only against his or her employer and does not create an independent cause of action against the EEOC [Equal Employment Opportunity Commission] for its investigation and processing of a charge." *Woodruff v. Merit Systems Protection Board*, [109 LRP 4087](#), 593 F. Supp. 2d 272 (D.D.C. 2009), citing *Packer v. Department of the Navy, et al.*, [90 FEOR 5049](#), 735 F. Supp. 8 (D.D.C. 1990).

Pursuing a claim under Title VII

- Federal employees must seek EEO counseling within 45 days of the agency's alleged act of discrimination or, if the claim involves a personnel action, within 45 days of the effective date of the action. [29 CFR 1614.105](#) (a)(1).
- The time limits for seeking EEO counseling may be waived if a complainant is prevented from timely initiating counseling for reasons beyond her control. [29 CFR 1614.105](#) (a)(2).
- In cases where the agency agrees to offer ADR, counselors must advise aggrieved individuals of their opportunity to choose between ADR and EEO counseling. The EEO counselor should inform the individual about the differences between ADR and EEO counseling. [29 CFR 1614.105](#) (b)(2); [EEOC MD-110, Chapter 2](#).
- When an aggrieved person seeks pre-complaint counseling, the EEO Counselor must fully inform the individual of: 1) how the agency EEO ADR program works; 2) the opportunity to participate in the program where the agency agrees to offer EEO ADR in a particular case; and 3) the right to file a formal complaint if EEO ADR does not achieve a resolution. [EEOC MD-110, Chapter 2\(I\)\(E\)](#).
- ADR, if chosen, lasts 90 days. If the dispute is not resolved after 90 days, the agency must issue the aggrieved individual a notice of the individual's right to file a formal complaint. [29 CFR 1614.105](#) (f); [29 CFR 1614.105](#) (d).
- If a complaint has not been resolved by the end of the counseling period, the counselor must issue a notice of final interview. The EEO counselor must inform the aggrieved individual in writing of that individual's right to file a formal EEO complaint within 15 days of receiving receipt of the notice and of the requirements for a formal complaint. The notice must also inform the individual of the agency official with whom a formal complaint should be filed and note the individual's duty to inform the agency immediately if counsel or a representative is retained. [29 CFR 1614.105](#) (d).
- A complainant must appeal a final agency action within 30 days. [29 CFR 1614.402](#) (a).
- A complainant may file suit in federal court within 90 days of receiving an agency's final action or within 90 days of receiving a final decision on an appeal to the EEOC. [29 CFR 1614.407](#) (a), (c).
- A complainant may file a suit after 180 days from the date of filing an administrative complaint if a final action has not been taken, or 180 days after the filing of an appeal with the EEOC if no final decision has been issued. [29 CFR 1614.407](#) (b), (d).
- For more on this subject, see the [Quick Start Guide: EEO Complaints - The Informal Process](#).

Types of discrimination under Title VII

- **Hadley:** The gravamen of a complaint under Title VII is that there is a linkage between a personnel action, or a term, condition, or privilege of employment and race, color, sex, national origin, or religion. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Bases of Discrimination Under Title VII](#).

Disparate treatment

- Individuals who raise claims of disparate treatment discrimination under Title VII are alleging that the agency intentionally subjected them to an adverse action on the basis of their race, color, sex, national origin, or religion, or in retaliation for their participation in protected EEO activity. [Management Directive 110, Appendix L: Model for Analysis Disparate Treatment](#).
- The long-established framework for establishing disparate treatment discrimination in the absence of direct evidence of discrimination is provided by *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973).
- Under *McDonnell Douglas*, a complainant must first establish a prima facie case by presenting enough evidence to raise an inference of discrimination. The agency may then attempt to rebut the complainant's prima facie case by articulating a legitimate, nondiscriminatory explanation for its action. If the agency provides such an explanation, the complainant can still prevail by establishing by the preponderance of the evidence that the agency's stated reason for its action is pretext for discrimination. *McDonnell Douglas Corp. v. Green*, [73 FEOR 9001](#), 411 U.S. 792 (1973).

- When a complainant presents direct evidence of discrimination, it is inappropriate to use the *McDonnell Douglas* test. In these cases, liability will be established unless the agency can impeach the direct evidence or establish an affirmative defense. *Mulvaney v. U.S. Postal Service*, [108 LRP 60911](#), EEOC No. 0120071617 (EEOC OFO 2008).
- A finding of direct evidence of discrimination can eliminate the need for the three-step *McDonnell Douglas* analysis that is necessary when there is only inferential evidence of discrimination. *Jaleesa P. v. U.S. Postal Service*, [123 LRP 14690](#), EEOC No. 2021002648 (EEOC OFO 2023).
- For more on this subject, see the [Quick Start Guide: Disparate Treatment](#).

Hostile work environment

- To establish a claim of discriminatory harassment that creates a hostile work environment, a complainant must show that:
 - He is a member of the statutorily protected class;
 - He was subjected to harassment in the form of unwelcome verbal or physical conduct involving the protected class;
 - The harassment complained of was based on the statutorily protected class; and
 - The harassment affected a term or condition of employment and/or had the purpose or effect of unreasonably interfering with the work environment and/or creating an intimidating, hostile, or offensive work environment." *Gibson v. Department of Homeland Security*, [109 LRP 3147](#), EEOC No. 0720060079 (EEOC OFO 2008), citing *Humphrey v. U.S. Postal Service*, [99 FEOR 3090](#), EEOC No. 01965238 (EEOC 1998).
- [29 CFR 1604.11](#) (b) requires that an assessment of whether conduct constitutes discriminatory harassment should consider the "record as a whole" and "the totality of the circumstances." It notes that the actions at issue must be viewed "on a case by case basis."
- In assessing whether a hostile work environment exists, all of the circumstances must be considered, "including the frequency of the discriminatory conduct; its severity; whether it was physically threatening or humiliating, or a mere offensive utterance; whether it was hostile or patently offensive; whether the alleged harasser was a co-worker or a supervisor." *Henderson v. U.S. Postal Service*, [109 LRP 609](#), EEOC No. 0120083298 (EEOC OFO 2008), citing *Harris v. Forklift Systems, Inc.*, [93 FEOR 9003](#), 510 U.S. 17 (1993).
- Whether an objectively hostile or abusive work environment exists is based on whether a reasonable person in the complainant's circumstances would have found the alleged behavior to be hostile or abusive. The incidents must have been "sufficiently severe and pervasive to alter the conditions of complainant's employment and create an abusive working environment." *Harris v. Forklift Systems, Inc.*, [93 FEOR 9003](#), 510 U.S. 17 (1993).
- [29 CFR 1604.11](#) (b) requires that an assessment of whether conduct constitutes discriminatory harassment should consider the "record as a whole" and "the totality of the circumstances." It notes that the actions at issue must be viewed on a case-by-case basis. See, for example, *Hung P. v. Department of Veterans Affairs*, [122 LRP 28439](#), EEOC No. 2021002696 (EEOC OFO 2022).
- For more on this subject, see the [Quick Start Guide: Hostile Work Environment](#).

Disparate impact

- **Hadley:** Unlike the theory of intentional discrimination, the theory of disparate or adverse impact discrimination does not require any showing of the employer's motive. Rather, the focus is entirely on the effect of the employer's policies and practices. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Theories of Discrimination -- Adverse Impact](#).
- **Hadley:** Perhaps because in an adverse impact case the employer is not culpable in the same sense as in cases of intentional discrimination, for years the theory has been a legal, as well as a political, battlefield. The battle has encompassed not only the question of the employer's liability for adverse impact discrimination, but the appropriate remedies. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Theories of Discrimination -- Adverse Impact](#).
- For more on this subject, see the [Quick Start Guide: Disparate Impact](#).

Denial of religious accommodation

- An employer is required to reasonably accommodate an employee's bona fide religious beliefs and practices, unless it "demonstrates that accommodation would result in an undue hardship on the conduct of its business." [29 CFR 1605.2](#) (b).
- **Hadley:** To establish a prima facie case of failure by the agency to accommodate an appellant's religion, the appellant must show that: 1) he has a bona fide religious belief that conflicts with an agency policy; 2) he informed the agency of this belief; and 3) he was penalized in some way because of the conflict. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Prima Facie Case](#), citing *Protos v. Volkswagen of America, Inc.*, [86 FEOR 90013](#), 797 F.2d 129 (3d Cir. 1986).

- "The Commission's position is that the denial of reasonable religious accommodation absent undue hardship is actionable even if the employee has not separately suffered an independent adverse employment action, such as being disciplined, demoted, or discharged as a consequence of being denied accommodation. This is because requiring him to work without religious accommodation where a work rule conflicts with his religious beliefs necessarily alters the terms and conditions of his employment for the worse. However, the courts are split on this question." [EEOC Compliance Manual, Section 12: Religious Discrimination](#).
- For more on this subject, see the [Quick Start Guide: Reasonable Accommodation - Religion](#).

Per se retaliation

- In *Burlington Northern & Santa Fe Railway Co. v. White*, [106 LRP 37559](#), 126 S. Ct. 2405 (2006), the U.S. Supreme Court resolved a split in the U.S. Circuit Courts concerning the type of employer acts that could be considered retaliatory. It rejected the notion that to prevail on a claim of retaliation, a complainant must have suffered an ultimate employment action, such as termination or demotion. Instead, it found the complainant has to show that "a reasonable employee would have found the challenged action materially adverse, which in this context means it well might have dissuaded a reasonable worker from making or supporting a charge of discrimination."
- Comments that are reasonably likely to deter employees from engaging in EEO activity are per se interference with the EEO process. It does not matter if the complainant is not actually deterred from pursuing an EEO claim. *Williams v. Department of the Army*, [111 LRP 34408](#), EEOC No. 0120090596 (EEOC OFO 2011).
- **Hadley:** The commission has always expressed a concern with the so-called "chilling effect" of retaliatory actions. The chilling effect is unique as an injury for purposes of stating a claim in that the allegation is not primarily that the complainant has been injured, but that the agency's actions have injured others, or may have that potential. As a result, retaliation can present an exception to the general rule that in order to have standing to bring a complaint, a complainant must allege a personal injury in fact. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chilling Effect and the Reasonably Likely to Deter Standard](#).
- For more on this subject, see the [Quick Start Guide: Reprisal --Chilling Conduct](#).

Bases of discrimination under Title VII

Race and color discrimination

- The EEOC indicates that Title VII's prohibition of race discrimination generally encompasses: ancestry, physical characteristics, race-linked illness, culture, perception, association, subgroup or "race plus discrimination." [EEOC Compliance Manual, Section 15: Race and Color Discrimination](#).
- Without necessarily using terms like "reverse discrimination", the EEOC recognizes and processes race and color discrimination complaints based on all races and colors, including those filed by white males. *Nienaber v. Department of the Treasury*, [86 FEOR 21594](#), EEOC No. 01860790 (EEOC 1986).
- Discrimination based on color differs from race discrimination. The appellant, a member of the black race with a dark complexion, alleged members of the same race with lighter complexions received opportunities for overtime that were denied to him. *Hilliard v. U.S. Postal Service*, [86 FEOR 1049](#), EEOC No. 01842267 (EEOC OFO 1986).
- For more on this subject, see the [Quick Start Guide: Race and Color Discrimination](#).

Sex discrimination

- Sex-based disparate treatment occurs when an agency employee or applicant for employment is treated less favorably with regard to a term or condition of employment than a similarly situated individual of sex. [Management Directive 110, Appendix L: Model for Analysis Disparate Treatment](#).
- Title VII of the Civil Rights Act of 1964 prohibits discrimination "because of ... sex," regardless of the victim's sex. *Oncale v. Sundowner Offshore Services, Inc. et al.*, [98 FEOR 9001](#), 118 S.Ct. 998 (1998).
- Under the Pregnancy Discrimination Act, [42 USC Section 2000e\(k\)](#), Title VII's prohibition of sex discrimination extends to discrimination "because of or on the basis of pregnancy, childbirth, or related medical conditions." The act further provides that "women affected by pregnancy, childbirth, or related medical conditions shall be treated the same for all employment-related purposes ... as other persons not so affected but similar in their ability or inability to work..."
- Agencies should treat claims of sexual orientation discrimination as complaints of sex discrimination under Title VII and process such complaints through the ordinary EEO administrative process. *Baldwin v. Department of Transportation, Federal Aviation Administration*, 0120133080, [115 LRP 31813](#) (EEOC OFO 2015).
- For more on this subject, see the [Quick Start Guide: Sex Discrimination](#), the [Quick Start Guide: Sexual Harassment - EEO](#), and the [Quick Start Guide: Pregnancy and Birth-Related Discrimination](#).

National origin

- "Generally, national origin discrimination means treating someone less favorably because that individual (or his or her ancestors) is from a certain place or belongs to a particular national origin group." [EEOC Compliance Manual, Section 13: National Origin Discrimination](#).
- "Title VII prohibits employer actions that have the purpose or effect of discriminating against persons because of their national origin. In addition, Title VII prohibits discrimination against a person because he or she is associated with an individual of a particular national origin." [Footnotes omitted.] [EEOC Compliance Manual, Section 13: National Origin Discrimination](#).
- National origin discrimination includes discrimination because a person (or his or her ancestors) comes from a particular place. [EEOC Compliance Manual, Section 13: National Origin Discrimination](#).
- "A 'national origin group,' often referred to as an 'ethnic group,' is a group of people sharing a common language, culture, ancestry, and/or other similar social characteristics." [EEOC Compliance Manual, Section 13: National Origin Discrimination](#).
- "National origin discrimination includes discrimination against American Indians or members of a particular tribe." [EEOC Compliance Manual, Section 13: National Origin Discrimination](#); *Turner v. Department of the Interior*, [96 FEOR 3215](#), EEOC No. 05940844 (EEOC 1996).
- The EEOC has stated that, because of the potential for masked national origin discrimination, it will closely scrutinize employment decisions based on claims that an individual is unable to communicate adequately in English. *Shah v. Department of Defense, Defense Logistics Agency*, [91 FEOR 3346](#), EEOC No. 05901097 (EEOC 1991).
- For more on these subjects, see the [Quick Start Guide: National Origin Discrimination](#) and the [Quick Start Guide: Accent Discrimination](#).

Religion

- Title VII prohibits agencies from: 1) subjecting applicants or employees to disparate treatment based on their religious beliefs or practices -- or lack thereof -- in any aspect of employment; 2) subjecting employees to harassment because of their religious beliefs or practices -- or lack thereof -- or because of the religious practices or beliefs of people with whom they associate; 3) denying a requested reasonable accommodation of an applicant's or employee's sincerely held religious beliefs or practices -- or lack thereof -- if an accommodation will not impose an undue hardship on the conduct of the business. [EEOC Compliance Manual, Section 12: Religious Discrimination](#).
- "The prohibition on discrimination and the requirement of reasonable accommodation apply whether the religious views in question are mainstream or non-traditional, and even if not recognized by any organized religion. These protections also extend to those who profess no religious beliefs." [EEOC Compliance Manual, Section 12: Religious Discrimination](#).
- "Title VII defines 'religion' to include 'all aspects of religious observance and practice as well as belief.' Religion includes not only traditional, organized religions such as Christianity, Judaism, Islam, Hinduism, and Buddhism, but also religious beliefs that are new, uncommon, not part of a formal church or sect, only subscribed to by a small number of people, or that seem illogical or unreasonable to others." [Footnotes omitted] [EEOC Compliance Manual, Section 12: Religious Discrimination](#).
- For more on this subject, see the [Quick Start Guide: Religious Discrimination](#) and the [Quick Start Guide: Reasonable Accommodation - Religion](#).

Reprisal

- EEOC regulations provide that reprisal is prohibited under Title VII of the Civil Rights Act, the Age Discrimination in Employment Act, the Equal Pay Act, the Rehabilitation Act, the Genetic Information Nondiscrimination Act, and the Pregnant Workers Fairness Act. [29 CFR 1614.101](#)(b).
- Reprisal refers to prohibited acts of retaliation against those who file EEO complaints, or who otherwise participate in the EEO process as representatives, witnesses, investigators, counselors or program officials. Under the EEOC's regulations, acts of reprisal are prohibited by [29 CFR 1614.101](#) (b).
- Those protected from retaliation include applicants, employees, former employees, and third parties who can be subjected to adverse employment actions based on their relationships with individuals who have engaged in EEO activity. [EEOC Enforcement Guidance on Retaliation and Related Issues \(2016\)](#).
- A complainant can establish a prima facie case of reprisal by showing that: 1) she engaged in a protected activity; 2) the agency was aware of the protected activity; 3) subsequently, she was subjected to adverse treatment by the agency; and 4) a nexus exists between the protected activity and the adverse treatment. *Hill v. Department of Veterans Affairs*, [107 LRP 70273](#), EEOC No. 0120063979 (EEOC OFO 2007).
- In *Burlington Northern & Santa Fe Railway Co. v. White*, [106 LRP 37559](#), 126 S. Ct. 2405 (2006), the U.S. Supreme Court resolved a split in the U.S. Circuit Courts concerning the type of employer acts that could be considered retaliatory. It rejected the notion that to prevail on a claim of retaliation, a complainant must have suffered an ultimate employment action, such as termination or demotion. Instead, it found the complainant has to show that "a reasonable employee would have found the challenged

action materially adverse, which in this context means it well might have dissuaded a reasonable worker from making or supporting a charge of discrimination."

- Because retaliation is prohibited by a different section of Title VII than the other bases of discrimination, the Supreme Court has ruled that mixed-motive analysis is not available for retaliation claims. Retaliation claims require proof that the desire to retaliate was the but-for cause of the challenged employment action. *University of Texas Southwestern Medical Center v. Nassar*, [113 LRP 26086](#), 570 U.S. 338 (2013).
- In *Gomez-Perez*, the U.S. Supreme Court noted: "Title VII's federal-sector provision incorporates certain private-sector provisions but does not incorporate the provision prohibiting retaliation in the private sector. [See 42 USC Section 2000e-16\(d\)](#) (incorporating Sections 2000e-5(f) to (k) but not Section 2000e-3(a), which forbids private-sector retaliation)." However, it also noted that "the federal-sector provision of Title VII does incorporate a remedial provision, Section 2000e-5(g)(2)(A), that authorizes relief for a violation of Section 2000-3(a)." The Court did not reach the question of whether Title VII bans retaliation in federal employment. *Gomez-Perez v. U.S. Postal Service*, [108 LRP 31246](#), 128 S. Ct. 1931 (2008).
- Because retaliation is prohibited by a different section of Title VII than the other bases of discrimination, the Supreme Court ruled that mixed-motive analysis is not available for retaliation claims. Accordingly, Title VII retaliation claims require proof that the desire to retaliate was the "but for" cause of the challenged employment action. *University of Texas Southwestern Medical Center v. Nassar*, [113 LRP 26086](#), 133 S. Ct. 2517 (2013).
- However, in the EEOC's opinion, the "but for" standard does not apply to retaliation claims by federal sector applicants or employees under Title VII or the ADEA "because the relevant federal sector statutory language does not employ the 'because of' language" upon which the Supreme Court based its holdings in *University of Texas Southwestern Medical Center v. Nassar*, [113 LRP 26086](#) (2013) and *Gross v. FBL Financial Services, Inc.*, [109 LRP 35279](#) (2009). *Petitioner v. Department of the Interior, National Park Service*, 0320110050, [114 LRP 34235](#) (EEOC 2014).
- In federal sector Title VII and ADEA retaliation cases, the Commission has held that the "but-for" standard does not apply because the relevant federal sector statutory provisions do not employ the same language on which the Court based its holding in *Nassar*. The federal sector provisions contain a "broad prohibition of 'discrimination' rather than a list of specific prohibited practices," requiring that employment "be made free from any discrimination," including retaliation. Therefore, in Title VII and ADEA cases against a federal employer, retaliation is prohibited if it was a motivating factor. [EEOC Enforcement Guidance on Retaliation and Related Issues \(2016\)](#).
- The Supreme Court has found that individuals who are subjected to retaliation based on the EEO activity of a family member or associate have standing to pursue retaliation claims under Title VII because they fall within the zone of interests protected by that law. *Thompson v. North American Stainless, LP*, [111 LRP 4346](#), 131 S. Ct. 863 (2011), reversing and remanding [110 LRP 37588](#) (6th Cir. 2009).
- For more on this subject, see the [Quick Start Guide: Reprisal](#)

Compensatory damages

- In 1991, Title VII was amended to provide for compensatory damages, with some limitations, for violations of Title VII and the American with Disabilities Act. [42 USC Section 1981a](#)(a)(2).
- For more on this subject, see the [Quick Start Guide: Compensatory Damages](#).

Other Resources

- [Quick Start Guide: Disparate Treatment](#)
- [Quick Start Guide: Hostile Work Environment](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 13 -- Bases of Discrimination Under Title VII](#)

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